

ONTARIO
SUPERIOR COURT OF JUSTICE
(SMALL CLAIMS COURT)

BETWEEN:

Katherine Anne Borgschulze	)	Jim Rennie,
	)	paralegal for the plaintiffs
plaintiff	)	
- and -	)	
	)	
Crestwood Trailer Park Ltd.	)	Caroline Mowat,
	)	counsel for the defendants
defendant	)	
	)	
	)	

Heard July 18, 2018
Judgment October 17, 2018

REASONS FOR JUDGMENT

Introduction

1. Crestwood Trailer Park Limited is (or was) a trailer park in Brantford, Ontario. It is now called Twin Springs, and it has new owners. The park has about 100 residents, mostly year round, and on July 1, 2017 one of those residents, Katherine Borgschulze alleges that she tripped in some ruts left in a common area of the park when another trailer was removed. The plaintiff says that it was the defendant's negligence which led to her suffering injuries in that incident.

Evidence

2. Matthew Cole was a resident at Crestwood Lake in 2017, and had been for about ten years. Mr. Cole described the park as a year-round facility in which trailers were stationed around a large cleared space in the middle which functioned as a sort of common area. The trailers were accessed by a perimeter road which roughly followed the outline of the common area.

3. Mr. Cole testified that the common area was used by the residents for games, campfires, other activities, and on occasion, moving trailers.
4. In about the middle of June of 2017 Mr. Cole said that one of his fellow residents (Cindy Dolson-Weliczko) was removing a trailer which she had had parked at Crestwood for some 20 years. Mr. Cole described it as an involved job requiring the park's tractor hooking onto the outgoing trailer and dragging it a short distance across the common area to the road.
5. Mr. Cole said that after having been there that length of time the wheels on the trailer were seized, and in the process of removing the trailer at least three ruts were created in the common area – six inches wide and two or three inches deep.
6. Mr. Cole testified that he saw park management go past the ruts on a number of occasions, and he is confident that the defendant knew that they were there. Pictures of one of the ruts were marked as Exhibit 1 at trial. The pictures, taken by Mr. Cole, were date-stamped August 31, fully months after the events in issue. There was no more contemporaneous evidence of the ruts.
7. On July 1, 2017 Crestwood held a Canada Day celebration at the park, in which the plaintiff (who was then living with Mr. Cole) participated with her son Jeffrey and granddaughter Payton, who had come to visit. Residents provided their own entertainment – barbecuing, games and fireworks.
8. Jeffrey was 30, and Payton was 9 on July 1 2017. They had been to Crestwood 'many times' according to Mr. Cole.
9. Ms. Borgschulze, according to Mr. Cole, consumed at most a small quantity of alcohol on that day as she was responsible for watching her granddaughter while her son and Mr. Cole remained at the trailer. They each consumed a couple of beers. After the fireworks Ms. Borgschulze saw her family off and then returned to Mr. Cole's trailer, in the dark.

10. Mr. Cole described that when Ms. Borgschulze came back to the trailer she told him that she had hurt her knee. He testified that she was in pain and discomfort, and had to remain essentially sedentary for two months, during which her inability to engage in exercise caused her to gain weight, and caused her personality to change.
11. Mr. Cole was cross-examined at length on the geography of the park, and he acknowledged that while none of the residents owned their land they all had areas which were informally treated as their 'property' as opposed to the common area. There was no formal site plan. In Mr. Cole's case his 'property' was bordered at the back by two sheds and at the side by a picnic table. As the picnic table was moveable the boundary was somewhat fluid.
12. Exhibit 2 was a longer view of Mr. Cole's area which captured a portion of the common area, but the ruts were not readily visible in that picture as they were in Exhibit 1. Based on the two pictures I find that the ruts as at August 31, 2017 were most likely in the common area, and not Mr. Cole's exclusive 'property'.
13. There was no evidence of the exact dimensions of the ruts. They were clearly more than impressions in the grass, as bare dirt could be seen at the bottoms, but the precise depth, width and length were unknown.
14. Although Mr. Cole did not see Ms. Borgschulze injure her knee he surmised that she tripped in one of them, given the location of the ruts and her path back to the trailer from the parking lot.
15. The next day when it was light the two of them went back out and Mr. Cole said that Ms. Borgschulze was able to identify the precise spot where she had injured herself.
16. Mr. Cole acknowledged that by July first the ruts had been there for about two weeks, and that both he and the plaintiff were aware of the ones in the common area, and of additional ruts on the roadway, following the path that Ms. Dolson-Weliczko's old trailer had been towed out along, which actually cut across a small section of his driveway.

17. Mr. Cole testified that the task of taking Cindy's trailer out took about a week – the deck had to be cut off and other preparatory work completed before the trailer could be hauled out and a new one installed. Mr. Cole was home the day of the actual move and watched the entire process from his deck. He clearly saw the ruts being formed, he said.
18. Because he was aware of the ruts and he always paid close attention to the ground he was able to continue cutting grass and raking on his property without incident, and he was not aware of any other resident or guest having had any issues in that area.
19. Ms. Borgschulze was able to give a more detailed description of the incident which she says caused her injury. She walked Jeffrey and Payton back to their car and then went to make sure that the fire lit earlier by Mr. Cole in his firepit was under control. It was on her way back from the firepit to the trailer that she stepped in one of the ruts, she said, and almost fell. She managed to keep herself from falling but she speculated that may have made her injury worse, because she twisted her knee in the process.
20. She did not believe that her injury was serious immediately – her knee was a little sore and was making a clicking sound, but she put her feet up on the couch and later went to bed.
21. When she woke the next morning her knee was inflamed and very sore. She had difficulty getting out of bed, and she determined to stay off of it as much as possible for a few days. She treated her knee with ice and liniment, and took ibuprofen for the pain. She did not seek medical attention for some time.
22. About a week later Ms. Borgschulze said that she accompanied Mr. Cole to the park office to pay the rent, using a walking stick for the short trip. While there she ran into Margaret St. Pierre Beke, the wife of the park manager, and advised her that she had tripped in one of the ruts left by the removal of Cindy's trailer. Margaret assured the plaintiff that she would report the issue to her husband Dan, who was in charge of park maintenance, and that he would take care of any problems.

23. Ms. Borgschulze said that her knee worsened, and she made an appointment to see her family doctor, Dr. Israel on August 17th – 6 weeks after the incident. Dr. Israel ordered an x-ray and an ultrasound.
24. A portion of Dr. Israel's clinical notes and records was produced at trial and marked as Exhibit 3. Exhibit 4 was the diagnostic imaging report which concluded that there was no fracture, but a small amount of swelling in the affected joint.
25. According to the ultrasound report, dated August 24th, 2017 there was non-specific tendinosis and a partial thickness intrasubstance tear in the knee, for which Dr. Israel prescribed physiotherapy, ice and the use of a cane.
26. Ms. Borgschulze applied ice and continued using a cane, but could not afford the physiotherapy.
27. The plaintiff testified that she suffered mood changes, becoming 'miserable' and depressed. She gained weight, was in pain almost constantly and lost the ability to dance, go for walks and play with her granddaughter. She testified that she can no longer kneel at church, or garden, and her ability to do housework has been impacted as well.
28. Ms. Borgschulze returned to Dr. Israel in October 2017, and he advised her that her *left* knee was being impacted by the injury to her right knee, as she changed her gait and weight-bearing to compensate for the injury.
29. Her reduced function led to arguments with Mr. Cole, and she moved out of his trailer in September of 2017. She and Mr. Cole are still a couple, but they no longer cohabit. She still visits Mr. Cole at Crestwood though, including some extended visits.
30. Ms. Borgschulze testified that she was aware of the ruts, but wasn't thinking about them that night as she returned to the trailer. She had just had a lovely day with her son and granddaughter and her mind was on other things.

31. On cross-examination Ms. Borgschulze was unclear on the mechanics of the fall. She could not remember exactly what happened, although she was certain that the sequence started with her right foot landing in one of the ruts as she walked.
32. She agreed that she knew that she would be walking in the dark, with perhaps only a little bit of light coming from the living room window of Mr. Cole's trailer, but she did not think it necessary to bring a flashlight.
33. She explained that she took a different path that night; ordinarily she would walk between the car and the trailer but since she was making a detour that evening to check on the fire she ended up walking on the far side of the car, closer to the common area – and the ruts.
34. Ms. Borgschulze testified that she is now required to wear a brace on her right knee, and that the joint still causes her considerable pain. Because she receives Ontario Disability Support Program benefits Ms. Borgschulze is not claiming any out of pocket expenses, but she explained that there was a very long waiting list for OHIP-funded physiotherapy, and that she would prefer to be able to fund that therapy privately. No details of the cost or duration of the proposed physiotherapy were provided at trial.
35. Crestwood's maintenance manager, Dan Beke, testified next. He described that he was at the park most days – cutting the grass in the common areas, making sure that the water and sewage systems worked properly, maintaining the roads by grading and filling in potholes, fixing any smaller issues which arose and arranging for contractors to fix larger ones.
36. Mr. Beke determined what work needed to be done at Crestwood (which at that time was owned by his father in law, Percy St. Pierre) by patrolling and visual inspection – sometimes in the park pickup truck, and other times on foot. If he observed a problem, he said, he fixed it or arranged to have it fixed.
37. Mr. Beke testified that the park policy was that any issues could be brought directly to his or Margaret's attention, and that it was common for residents to stop him as he was going by if there was something they wanted him to be aware of. He first learned of the alleged

ruts in the common area from Ms. Borgschulze when she approached him in his workshop, on her way back to Mr. Cole's trailer from the park office – but this was *before* July 1 of 2017.

38. When Ms. Borgschulze first mentioned the ruts she did not say that she had fallen or tripped, and she made no mention of having injured herself.
39. Mr. Beke said that he would investigate, which he promptly did by walking around the entire common area, within an hour of Ms. Borgschulze's complaint. He testified that he observed no signs of ruts, or any other tripping hazards. In fact Mr. Beke said that he never saw any evidence of ruts until after the claim had been served on Crestwood. The park, up until the time it was sold, received no complaints about ruts from any other residents.
40. On cross-examination Mr. Beke disagreed that the ground in the common area could be fairly described as 'soft'. He was positive that the ground at the relevant time was hard-packed, and that there had not been enough rain to loosen the soil.
41. When shown Exhibit 1 Mr. Beke agreed that it appeared to show some ruts, but he was confident that they were not in the common area where people would be expected to walk. The ruts were squarely in the section which Mr. Cole enjoyed exclusive use of, in Mr. Beke's opinion. The public, or other residents of the park, would not be expected to walk on each other's 'property'.
42. Mr. Beke finally testified that the park was not responsible for installing or removing trailers – that was the residents' responsibility.
43. Margaret St. Pierre Beke testified next. She performed administrative duties at the park, helping resolve resident concerns, collecting rent, paying bills, ordering supplies and running the park's convenience store, which was located in the park office building.
44. One of Ms. St. Pierre Beke's duties was to read the hydro meters at the individual trailers. She last checked meters on June 26, 2017 – shortly before the alleged incident. She

testified that she did not have a regular route which she used, but she would likely have been in the area where the ruts were alleged to be. She did not recall seeing any ruts but could not say definitively that there were none. She stressed that when she walked the park she always kept her eyes on the ground to avoid stepping in dog waste.

45. Ms. St. Pierre Beke also recalled that Ms. Borgschulze mentioned the ruts *before* July 1, 2017, in the form of a complaint at the office. She testified that the plaintiff said “what would happen if I tripped in a rut?” Ms. St. Pierre Beke replied that the park carried liability insurance to cover that eventuality.
46. According to Ms. St. Pierre Beke the next time that the plaintiff mentioned the ruts to her was around August 30th. On that occasion the plaintiff and Mr. Cole both attended at the office, where they learned that the park had been sold.
47. Mr. Cole inquired about moving his trailer to a new lot, lot 333, which Ms. St. Pierre Beke said that he had had his eye on for a while. She answered that it would be up to the new owners to allocate lots. Ms. St. Pierre Beke said that the conversation became acrimonious at that point.
48. She testified that Ms. Borgschulze, who had been sitting on the arm of the couch during the meeting, stood up abruptly and handed Ms. St. Pierre Beke a handwritten demand letter describing a ‘slip and fall’ before she and Mr. Cole ‘stomped off’.
49. Ms. St. Pierre Beke agreed on cross-examination that Ms. Borgschulze and Mr. Cole were regular visitors at the office, and that they had more than their share of conflicts over park rules, about the plaintiff wanting to park a school bus at the park, and about their desire to move to lot 333.
50. Ms. St. Pierre Beke testified that she never saw the plaintiff using any sort of walking aid after July 1st until the meeting where she delivered the letter at the end of August.

51. Finally the Court heard from Cindy Dolson-Weliczko, the owner of the trailer which was replaced in June of 2017. Ms. Dolson-Weliczko's trailer was more or less directly across the common area from Mr. Cole's.
52. Ms. Dolson-Weliczko agreed that she switched trailers on June 20, 2017 – but the job took only half a day. She testified that the ground that day was very dry as there had been no rain for a considerable period before.
53. She testified that she used the park tractor to hitch on to the old trailer and pull it out, moving across the common area roughly parallel to the perimeter road, and passing very close to Mr. Cole's trailer – but not near the area where the plaintiff and Mr. Cole described the ruts being.
54. Reviewing Exhibit 1 Ms. Dolson-Weliczko said that the ruts depicted were far too small in every dimension to have been made by her trailer. Further, she testified that she watched the entire process of swapping trailers and the ground was in perfectly fine condition at the end of it – the same as before.
55. Ms. Dolson-Weliczko said that she watched the move from the deck of her old trailer (which remained behind) and so she had an excellent vantage. She was confident that no damage was done – and if there had been any scoring of the ground she would immediately have repaired it.
56. On cross-examination Ms. Dolson-Weliczko testified that the wheels of the old trailer, which had been parked for 15 years, were elevated off the ground for most of that time, with the result that they turned freely when the trailer was removed.
57. Ms. Dolson-Weliczko testified that she has observed the plaintiff doing 'normal stuff' and that to her eye Ms. Borgschulze did not appear injured, or limited, or even to walk differently. Ms. Dolson-Weliczko did not disclose any particular expertise in this area.

Submissions and Analysis

58. Mr. Rennie for the plaintiff urged me to find that Crestwood falls under the *Residential Tenancies Act 2006*, S.O. 2006, C. 17 (“RTA”). Part X of the RTA reads:

Part X - Mobile Home Parks and Land Lease Communities

General

Application

152 (1) This Part applies with respect to tenancies in mobile home parks. 2006, c. 17, s. 152 (1).

Same; land lease communities

(2) This Part applies with necessary modifications with respect to tenancies in land lease communities, as if the tenancies were in mobile home parks. 2006, c. 17, s. 152 (2).

Interpretation

153 A reference in this Part to a tenant’s mobile home shall be interpreted to be a reference to a mobile home owned by the tenant and situated within a mobile home park of the landlord with whom the tenant has a tenancy agreement. 2006, c. 17, s. 153.

59. If the RTA applies to Crestwood then Crestwood would have the duties set out in O. Reg 517/06, which provides:

Application

30. (1) Sections 31 to 36 apply to mobile home parks and land lease communities. O. Reg. 517/06, s. 30 (1).

...

Common areas

44. (1) All interior common areas and exterior common areas shall be kept clean and free of hazards. O. Reg. 517/06, s. 44 (1).

60. Mr. Rennie argues that the “exterior common areas” mentioned in in O. Reg 517/06 includes the grassy common area at Crestwood, and that the “hazards” which the landlord must keep the common areas clear of include potholes and ruts.

61. Alternatively, he submits that if the RTA does not apply then the *Occupiers' Liability Act*, R.S.O. 1990, c. O. 2 ("OLA") is the governing statute, and that the OLA imposes a similar duty through s. 3:

Occupier's duty

3 (1) An occupier of premises owes a duty to take such care as in all the circumstances of the case is reasonable to see that persons entering on the premises, and the property brought on the premises by those persons are reasonably safe while on the premises.

Idem

(2) The duty of care provided for in subsection (1) applies whether the danger is caused by the condition of the premises or by an activity carried on on the premises.

Idem

(3) The duty of care provided for in subsection (1) applies except in so far as the occupier of premises is free to and does restrict, modify or exclude the occupier's duty. R.S.O. 1990, c. O.2, s. 3.

62. Mr. Rennie argues that whichever statute governs, on the facts of the case I should find that the applicable duty was breached, and that Crestwood is liable to the plaintiff for general damages which he submits I should assess at \$25,000.

63. Ms. Mowat, for Crestwood, urged me to find that the RTA does *not* apply because of s. 5, which says:

Exemptions from Act

5 This Act does not apply with respect to,

(a) living accommodation intended to be provided to the travelling or vacationing public or occupied for a seasonal or temporary period in a hotel, motel or motor hotel, resort, lodge, tourist camp, cottage or cabin establishment, inn, campground, trailer park, tourist home, bed and breakfast vacation establishment or vacation home;

64. In support of this position Ms. Mowat argued that Crestwood was zoned as a seasonal campground – but there was no evidence of the zoning adduced at trial, and I accept the evidence of Mr. Cole that he resided there year round.
65. I find that the applicable framework is the one set out in the RTA.
66. Ms. Mowat next argued that the primary function of the RTA was to provide protection from excessive rent increases, and that as the plaintiff was not a tenant of Crestwood she does not benefit from those protections. I disagree.
67. Section 1 of the RTA makes this abundantly clear:

Purposes of Act

1 The purposes of this Act are to provide protection for residential tenants from unlawful rent increases and unlawful evictions, to establish a framework for the regulation of residential rents, to balance the rights and responsibilities of residential landlords and tenants and to provide for the adjudication of disputes and for other processes to informally resolve disputes. 2006, c. 17, s. 1.

68. The purpose of section 44 of O. Reg 517/06 is clearly unrelated to rent. It deals with the maintenance of common areas, which certainly relates substantially to the safety of the premises for use by tenants and invitees.
69. It is not necessary for the plaintiff to have been a tenant at Crestwood in order for the landlord to have duties to her under the RTA in respect of the common areas which Crestwood would have known that both tenants and their guests use.
70. I find that under the RTA Crestwood had a duty to ensure that the outside common areas of the trailer park were maintained free of hazards, and I find that ruts and potholes in the ground would represent ‘hazards’ of the sort contemplated.
71. Ms. Mowat also submitted that general damages were not available as a remedy for a breach of a duty imposed by the RTA. I see no reason why a breach of the RTA or a

regulation passed under it would not sound in general damages, if personal injury resulted from the breach.

72. Did Crestwood breach its duty to keep the common area free from hazards? I am not satisfied on the balance of probabilities that it did.
73. Whether or not there was a breach is a factual analysis. The plaintiff has the burden of establishing that there was a breach of duty by Crestwood, and then of establishing that that breach led to her injuries.
74. I am not able to find on the evidence before me that there was a breach. The evidence of the plaintiff and of Mr. Cole was not compelling as far as the details of the injury. On their evidence it was dark, Ms. Borgschulz did not have a flashlight and no one went out to the area of the trip until the next day.
75. The ruts were not photographed for a full two months after the incident and there was considerable dispute as to whether they existed, when they were made and where they were located – whether in the common area or on Mr. Cole’s reserved area.
76. I find that the plaintiff has failed to establish that Crestwood breached its duty of care to her under section 44 of O. Reg 517/06, and for this reason her claim must fail.
77. If I am wrong in this I observe that the plaintiff *also* failed to establish causation. The Supreme Court of Canada said this about causation in *Clements v. Clements*, [2012] 2 S.C.R. 181 at paragraph 46:

46 The foregoing discussion leads me to the following conclusions as to the present state of the law in Canada:

- i. (1)As a general rule, a plaintiff cannot succeed unless she shows as a matter of fact that she would not have suffered the loss "but for" the negligent act or acts of the defendant. A trial judge is to take a robust and pragmatic approach to determining if a plaintiff has established that the defendant's negligence caused her loss. Scientific proof of causation is not required.

- ii. (2)Exceptionally, a plaintiff may succeed by showing that the defendant's conduct materially contributed to risk of the plaintiff's injury, where (a) the plaintiff has established that her loss would not have occurred "but for" the negligence of two or more tortfeasors, each possibly in fact responsible for the loss; and (b) the plaintiff, through no fault of her own, is unable to show that any one of the possible tortfeasors in fact was the necessary or "but for" cause of her injury, because each can point to one another as the possible "but for" cause of the injury, defeating a finding of causation on a balance of probabilities against anyone.

78. The plaintiff failed to provide evidence to convince me even on a robust and pragmatic examination that but for Crestwood's negligence (had I found any) she would not have suffered an injury. The 'material contribution to risk' analysis does not apply in the case of a single alleged tortfeasor.
79. Finally, I am unable to find that the plaintiff suffered an injury to her right knee as a result of any incident at the park. Appreciating that a plaintiff is not required to immediately seek medical attention in order for her to have suffered an injury, I nevertheless find that the length of time before she attended at her family doctor, and the general paucity of medical evidence at trial, do not support a finding on the balance of probabilities that she *did* injure herself at Crestwood on the night of July 1, 2017.
80. For the foregoing reasons the plaintiff's claim is dismissed.
81. If the parties are unable to agree on costs they may make brief written submissions within 14 days of the release of these reasons. After 14 days I will consider that the issue of costs has been resolved by the parties.



October 17, 2018

Richard Campbell, Deputy Judge